

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

INTERNATIONAL LONGSHOREMEN’S ASSOCIATION,
Complainant

v.

GATEWAY TERMINALS, LLC; CHARLESTON STEVEDORING
CO., LLC; PORTS AMERICA FLORIDA, INC.; CERES MARINE
TERMINALS, INC.; AND SSA ATLANTIC, LLC, *Respondents*.

DOCKET NO. 22-12

Served: January 13, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER TO FILE JOINT STATUS REPORT AND PROPOSED SCHEDULE

On April 12, 2022, the Commission issued a Notice of Filing of Complaint and Assignment (“Notice”) for this proceeding requiring an initial decision by April 12, 2023. On April 18, 2022, an Initial Order issued that instructed the parties to submit a joint status report with proposed schedule within twenty days of the service of the answer.

On May 9, 2022, Respondents filed a Motion to Dismiss the Complaint.

On May 17, 2022, in response to a Motion for Enlargement of Time filed on May 13, 2022, an Order to Extend Time to File Responsive Pleading issued.

On June 3, 2022, Complainant filed a Motion for Leave to File an Amended Verified Complaint. On June 7, 2022, Complainant filed an Opposition to Respondents’ Motion to Dismiss. On June 21, 2022, Respondent filed a Reply in Support of Respondents’ Motion to Dismiss.

On June 23, 2022, an Order on Motion to Amend Complaint and Motion to Dismiss issued.

An Order to File Briefing issued on August 18, 2022, and the parties subsequently filed briefs; during that time, Motion for Leave to File Brief as *Amicus Curiae* was filed.

On November 7, 2022, an Order on Partial Motion to Dismiss The First Amended Complaint and Motion to Strike prayer for Reparations, and Motion for Leave to File *Amicus Curiae* (“Order on Partial Motion to Dismiss”) issued, denying Respondents’ partial motion to dismiss, denying Respondents’ motion to strike, ordering Respondents to file an answer to the amended complaint by November 18, 2022, and ordering the parties to submit a joint status

report *with proposed schedule* by December 2, 2022. Order on Partial Motion to Dismiss at 6-7. (emphasis added).

On November 23, 2022, Respondents filed a Consent Motion to Extend the Time to Exchange Initial Disclosures and File the Joint Status Report, requesting an additional week to exchange initial disclosures from November 25, 2022, to December 2, 2022, and to extend the deadline for the Joint Status Report from December 2, 2022, to December 9, 2022. Respondents alleged that Complainant consented to the Motion and Complainant did not respond. Respondents' motion did not separately address the scheduling proposal that was ordered to be provided with the joint status report.

On November 28, 2022, an Order to Extend Time to Exchange Initial Disclosures and to File Joint Status Report issued, granting the additional time sought.

No proposed schedule for discovery was received on either December 2, 2022, or December 9, 2022. While Respondent indicated in the Joint Status Report that another joint status report would be filed on January 9, 2023, no such report has been received. Despite being granted the extended time sought, the parties have failed to propose a discovery schedule.

Accordingly, the parties are hereby

ORDERED to file a joint status report and proposed schedule of discovery by January 20, 2023.



Linda S. Harris Crovella
Administrative Law Judge